

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

ANDRE DANIEL,

Plaintiff,

CIVIL ACTION NO.

COMPLAINT

-against-

CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT and
P.O. NELSON REYES,

JURY TRIAL DEMANDED

Defendants.

-----X

The plaintiff, complaining of the defendants, by his attorney,
MICHAEL DREISHPOON, ESQ., respectfully shows to this Court and
alleges:

JURISDICTION

1. Jurisdiction is founded upon the existence of a Federal
Question.

2. This is an action to redress the deprivation under color
of statute, ordinance, regulation, custom or usage of a right,
privilege and immunity secured to plaintiff by the First, Fourth
and Fourteenth Amendments to the Constitution of the United States,
Title 42 of the United States Code, Section 1983 and under the laws
and statutes of the State of New York.

3. Jurisdiction is founded upon U.S.C. Sections 1331 and
1343(4), this being an action authorized by law to redress the
deprivation under color of law, statute, ordinance, regulation,
custom or usage of a right, privilege and immunity secured to

Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States.

4. The matter in controversy exceeds, exclusive of interest and costs, the sum or value of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS.

PARTIES

5. The plaintiff, ANDRE DANIEL, is a citizen of the United States, and is a resident of Kings County, State of New York.

6. Upon information and belief, at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws and Constitution of the State of New York.

7. Upon information and belief, that at all times hereinafter mentioned, and on or about July 19, 2014, defendant, P.O. NELSON REYES, was employed by the defendant, NEW YORK CITY POLICE DEPARTMENT, as a police officer.

8. The defendant, NEW YORK CITY POLICE DEPARTMENT, is a local governmental agency, duly formed and operating under and by virtue of the laws and Constitution of the State of New York and, as such, is responsible for the policies, practices and customs of the NEW YORK CITY POLICE DEPARTMENT, as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees.

9. Upon information and belief, that at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled the police officers thereof.

10. This action arises under the United States Constitution, particularly under provisions of the First, Fourth and Fourteenth Amendments, Title 42 United States Code Section 1983 and arising under the laws and statutes of the State of New York.

11. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants, and employees, and each of them not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said State and City.

PENDENT STATE CLAIMS

12. As Notice of Claim asserting causes of action for excessive force, false arrest and malicious prosecution was served upon defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, on October 6, 2014.

13. The plaintiff testified at a "50-h hearing" pursuant to General Municipal Law §50-h on December 22, 2014.

14. That more than thirty (30) days have elapsed since the Notice of Claim has been served upon the defendants and the defendants have neglected or refused to make any adjustment or payment thereof.

AS AND FOR A FIRST CAUSE OF ACTION

15. Plaintiff, ANDRE DANIEL, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "14" with the same force and effect as if more fully set forth herein.

16. On July 19, 2014, at approximately 3:00 A.M., in the backyard of the apartment building located at 1725 Sterling Pl., Brooklyn, NY 11233, the defendants, their agents, servants and employees wrongfully assaulted, injured, maimed and falsely arrested, imprisoned and restrained plaintiff, ANDRE DANIEL, without any right or grounds therefore.

17. At that time and place, the defendants also wrongfully and falsely accused plaintiff, ANDRE DANIEL, of committing the following crimes: Obstructing Governmental Administration in the Second Degree (P.L. §195.05) and Resisting Arrest (P.L. §205.30).

18. The detention, arrest and imprisonment of plaintiff, ANDRE DANIEL, was caused by the defendants and/or their agents, servants and employees, without any warrant or other legal process and without authority of the law, and without any reasonable cause or belief that plaintiff, ANDRE DANIEL, was in fact guilty of such

offenses.

19. On the aforesaid date, time and place, plaintiff, ANDRE DANIEL, who was lawfully and properly at the location hereinabove noted, was assaulted by defendant, POLICE OFFICER NELSON REYES. More specifically, P.O. Reyes punched plaintiff in the groin area, thereby causing plaintiff to sustain injuries.

20. Thereafter, defendant, P.O. NELSON REYES, wrongfully and unlawfully, against plaintiff's wish, without probable cause, and on the false accusations then claimed, arrested and imprisoned plaintiff, ANDRE DANIEL, and with full force of arms, forcibly and violently seized, assaulted and laid hold of and compelled him to go to the 73rd Precinct, then Central Booking, then detention cells at the Kings County Criminal Court and finally arraigned before a Criminal Court Judge and released from jail during the night of July 19, 2014. (Please note that the Criminal Court papers contain the caption, People v. Andrew Daniel (Dkt. # 2014BK0533933), even though plaintiff's name is Andre Daniel.)

21. The defendants, their agents, servants and employees, acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff, ANDRE DANIEL, even though the defendants, their agents, servants and employees had the opportunity to know, or should have known, that the allegations were false and that the plaintiff did not break the law.

22. Plaintiff, ANDRE DANIEL, was wholly innocent of said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and employees, and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

23. The defendants, their agents, servants and employees, as set forth above, intended to confine plaintiff, ANDRE DANIEL, in that plaintiff was conscious of the confinement, and defendants were not otherwise privileged.

24. By reason of the false arrest, imprisonment and detention of plaintiff, ANDRE DANIEL, he was subjected to great indignities, humiliation and ridicule in being so detained, charged and prosecuted with various crimes and greatly injured in his credit and circumstances, and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body.

25. By reason of the aforesaid, plaintiff, ANDRE DANIEL, has been damaged in the sum of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS and is entitled to an award of punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION

26. Plaintiff, ANDRE DANIEL, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "25" with the same force and effect as if more fully set forth herein.

27. The defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were careless and reckless in hiring and retaining P.O. NELSON REYES because he lacked the experience, deportment and ability to be employed by the defendants. In addition, the defendants failed to exercise due care and caution in their hiring practices, and in particular, in hiring P.O. NELSON REYES who lacked the mental capacity and the ability to function as a police officer; failed to investigate P.O. REYES' background; failed to uncover that P.O. REYES lacked the maturity, sensibility and intelligence to be a police officer.

28. The aforesaid false arrest and imprisonment, assault and battery and resulting injuries to mind and body of the plaintiff, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees, without any negligence on the part of the plaintiff contributing thereto.

29. By reason of the aforesaid, the plaintiff, ANDRE DANIEL, who was injured in mind and body, still suffers and, upon information and belief, will continue to suffer, physical and mental pain, and was rendered sick, sore, lame and disabled and so remains, and was incapacitated and will, upon information and belief, be so incapacitated in the future, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries and to extricate himself from the indignities and humiliation foisted upon him by the action of the defendants, their

agents, servants and employees, including counsel fees and, upon information and belief, will expend further sums of money in that direction.

30. By reason of the aforesaid, the plaintiff, ANDRE DANIEL, has been damaged in the sum of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS.

AS AND FOR A THIRD CAUSE OF ACTION

31. Plaintiff, ANDRE DANIEL, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "30" with the same force and effect as if more fully set forth herein.

32. The defendants, CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, their agents, servants and employees, negligently, carelessly and recklessly failed to properly train and supervise defendant, P.O. NELSON REYES. More specifically, the defendants failed to train P.O. REYES in the proper method of restraining a suspect and how to control his temper; failed to give P.O. REYES proper instructions as to his deportment, behavior and conduct.

33. The aforesaid false arrest and imprisonment, assault and battery and the resulting injuries to the plaintiff's mind and body, were caused wholly and solely by reason of the negligence of the defendants, without any negligence on the part of the plaintiff.

34. By reason of the aforesaid, the plaintiff, ANDRE DANIEL, was injured in mind and, upon information and belief, will continue to suffer physical and mental pain, and was rendered sick, sore, lame and disabled and so remains and was incapacitated and will, upon information and belief, be so incapacitated in the future, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees, and upon information and belief, will expend further sums of money in that direction, and the plaintiff has been otherwise damaged.

35. By reason of the aforesaid, the plaintiff, ANDRE DANIEL, has been damaged in the sum of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS.

AS AND FOR A FOURTH CAUSE OF ACTION

36. Plaintiff, ANDRE DANIEL, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "35" with the same force and effect as if more fully set forth herein.

37. The defendants, their agents, servants and employees, negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a trained police officer would have used under

similar circumstances in that they carelessly, recklessly and negligently arrested the plaintiff without making proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained the arrest of the plaintiff; in that the defendants, their agents, servants and employees, negligently, carelessly and recklessly, without provocation, and with force and violence and while punching plaintiff in the groin area, interfered with plaintiff's right of free movement in a public place; in that defendant, P.O. NELSON REYES, negligently struck the plaintiff; in that the defendants negligently, carelessly and recklessly used a threat of physical force and actually used physical force upon the plaintiff; in that the defendants, their agents, servants and employees were otherwise negligent, careless and reckless.

38. The aforesaid false arrest and imprisonment, assault and battery and the resulting injuries to the plaintiff's mind and body, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

39. By reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and, upon information and belief, will continue to suffer physical and mental pain, and was rendered sick, sore, lame and disabled and so remain, and was incapacitated and will, upon information and belief, be so incapacitated in the

future, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries to and to extricate himself from the indignities and humiliation foisted upon by the actions of the defendants, their agents, servants and employees, including counsel fees, and upon information and belief, will expend further sums of money in that direction, and the plaintiff has been otherwise damaged.

40. By reason of the aforesaid, the plaintiff has been damaged in the sum of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS.

AS AND FOR A FIFTH CAUSE OF ACTION

41. Plaintiff, ANDRE DANIEL, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully set forth herein.

42. On July 19, 2014, at approximately 3:00 A.M., while the plaintiff was lawfully in the backyard of an apartment building located at 1725 Sterling Pl., Brooklyn, NY 11233, County of Kings, City and State of New York, and at subsequent times thereafter including, but not limited to, Kings Central Booking and a detention cell at the Kings County Criminal Court Building in Brooklyn, New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff, without any just right or grounds therefore.

43. The plaintiff, ANDRE DANIEL, was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

44. On July 19, 2014, before a Judge of the Criminal Court of the City of New York, Kings County, the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation, charged the plaintiff, ANDRE DANIEL, with crimes and offenses under the New York Penal Law.

45. The defendants, their agents, servants and employees, acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before the aforementioned Judge.

46. The prosecution on criminal charges were instituted and procured by the defendants, their agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever. Also, the commencement of the criminal proceedings by the defendants against the plaintiff, ANDRE DANIEL, was without probable cause and with actual malice.

47. By reason of the aforesaid unlawful and malicious prosecution, the plaintiff, ANDRE DANIEL, was deprived of his liberty, subjected to great indignity, humiliation, pain and great distress of mind and body, held up to scorn and ridicule, was injured in his character and reputation, prevented from attending his usual business and avocation, injured in his reputation in the community been otherwise damaged.

48. That by reason of aforesaid, the plaintiff has been damaged in the sum of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS.

AS AND FOR A SIXTH CAUSE OF ACTION

49. Plaintiff, ANDRE DANIEL, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if more fully set forth herein.

50. On July 19, 2014, at approximately 3:00 A.M., the plaintiff was lawfully in the backyard of an apartment building located at 1725 Sterling Pl., Brooklyn, NY 11233.

51. On that date and at that time, police officers, including P.O. NELSON REYES, also were present in this particular backyard.

52. As plaintiff was lawfully and properly thereat, P.O. REYES, having the real and apparent ability to cause imminent harmful and offensive bodily contact, and the power and authority to arrest and imprison the plaintiff, ANDRE DANIEL, did so threaten these acts upon the plaintiff, who, after continuing his lawful activity, was forcefully detained by P.O. REYES.

53. Immediately thereafter, the defendants falsely arrested and imprisoned the plaintiff, ANDRE DANIEL, and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, by handcuffing him and threatening him with the possible use of weapons and the use of

physical force and imprisoned him without any conduct on the part of the plaintiff to so warrant.

54. All of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, ANDRE DANIEL, to arrest, restrain and imprison him without his consent. The plaintiff at all times was conscious of his arrest and did not consent to his arrest.

55. The arrest and imprisonment were not justified by probable cause or other legal privilege. Moreover, the defendants, their agents, servants and employees, acting under the color of statutes, ordinances, regulations, customs and usages of the City of New York, County of Kings and the New York City Police Department, and under the authority of their office as police officers for the police department, falsely charged the plaintiff, ANDRE DANIEL, with Resisting Arrest and Obstruction of Governmental Administration although the defendants, acting in such capacity, knew that such charges were false.

56. The defendants, their, agents, servants and employees caused an assault and battery when P.O. REYES punched the plaintiff in the groin area, without probable cause or any lawful cause whatsoever.

57. The defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior, and the performances of, P.O. REYES. Moreover, the defendants' failure to enforce the laws of the State of New York is evidence of their reckless lack of regard for the rights of the public, including plaintiff, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

58. The failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants in the exercise of their functions and their failure to enforce the laws of the State of New York, the City of New York and the New York City Police Department was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York and the City of New York, including the plaintiff.

59. The defendants' failure to discipline or terminate P.O. REYES represents a clear and present danger to the citizens of the City of New York and the State of New York.

60. The prosecution of and the criminal charges against the plaintiff were instituted and procured by the defendants, their agents, servants and employees unlawfully, maliciously and without

any reasonable or probable cause whatsoever. The commencement of the criminal proceeding by the defendants against the plaintiff, ANDRE DANIEL, was without probable cause and with actual malice.

61. The defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the plaintiff in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings, and under the authority of their office as police officers for the CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

62. Plaintiff, ANDRE DANIEL, did not commit any illegal acts, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the State of New York.

63. As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, the plaintiff, ANDRE DANIEL, was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and compelled to be arraigned and appear in Criminal Court, County of Kings and to undergo a criminal prosecution.

64. At all times hereinafter mentioned, P.O. REYES was employed in his respective capacity by the defendant, NEW YORK CITY POLICE DEPARTMENT, and was acting under the color of his official capacity and his acts were performed under the color of policies, statutes, ordinances, rules and regulations of the NEW YORK CITY POLICE DEPARTMENT.

65. At all times hereinafter mentioned, defendant, P.O. REYES, and unknown police officers, was acting pursuant to orders and directives from the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

66. During all times hereinafter mentioned, P.O. REYES and his colleagues, separately and in concert, acted under color and pretense of the laws, statutes, ordinances, regulations and customs of the State of New York and City of New York; the defendants herein, separately and in concert, engaged in the illegal conduct herein mentioned, to the injury of the plaintiff, ANDRE DANIEL, and deprived him of his rights secured by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States.

67. Defendant, P.O. REYES, and other police officers at the scene, as agents, servants and employees of defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, together with persons unknown to plaintiff, acting under color of law, subjected the plaintiff, and prior thereto, other persons, to a pattern of conduct consisting of illegal harassment, assault and battery,

false imprisonment, false arrest and malicious prosecution in denial of rights, privileges and immunities guaranteed to the plaintiff and other citizens by the Constitution of the United States and the Constitution of the State of New York.

68. This systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, false arrest, false imprisonment and malicious prosecution visited on plaintiff, ANDRE DANIEL, and other citizens by members of the NEW YORK CITY POLICE DEPARTMENT, acting in concert with persons unknown to plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in during the course of protecting persons or property or civil order.

69. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatsoever against any of their employees or agents.

70. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of them, deprived

plaintiff, ANDRE DANIEL, of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York.

71. The right of plaintiff, ANDRE DANIEL, to be secure in his person and effect against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

72. The right of plaintiff, ANDRE DANIEL, to be informed of the nature and cause of the accusations against him as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States.

73. The right of plaintiff, ANDRE DANIEL, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

74. By reason of the aforesaid violations, false arrest, false imprisonment, assault and battery and malicious prosecution caused by the defendants, their agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff, ANDRE DANIEL, and compel him to abandon his rights and privileges as provided to him by the Constitution of the United States, and provided to him in the Constitution of the State of New York, and laws related thereto, the defendants, their agents, servants and employees acted as persons who, under color of

any statute, ordinance, regulation, custom or usage of the CITY OF NEW YORK, subjected a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff, ANDRE DANIEL, to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States and the State of New York. In addition, the plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, prevented from attending his usual business and vocation and was injured in his reputation in the community, and the acts aforementioned were committed with the aim of injuring and damaging said plaintiff.

75. By reason of the aforesaid intentional assault and battery, the false arrest and false imprisonment, malicious prosecution and deprivation of his rights and liberties as guaranteed by the aforementioned Constitutions, by the defendants, their agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, caused the plaintiff, ANDRE DANIEL, to suffer great bodily injury as described hereinabove.

76. By reason of the aforesaid, the plaintiff, ANDRE DANIEL, has been damaged in the sum of TWO HUNDRED THOUSAND (\$200,000.00) DOLLARS.

77. By reason of the aforesaid, the plaintiff, ANDRE DANIEL, requests the following relief:

(a) compensary damages in the sum of ONE MILLION TWO HUNDRED THOUSAND (\$1,200,000.00) DOLLARS as per the schedule set forth below;

(b) punitive damages in the sum of ONE MILLION (\$1,000,000.00) DOLLARS;

(c) an award of reasonable attorney's fees, costs and disbursements.

78. Plaintiff requests a trial by jury of all issues involved in this complaint.

79. Plaintiff also requests such and further relief as this Court may deem just and proper under the circumstances.

WHEREFORE, Plaintiff demands judgment against the defendants as follows:

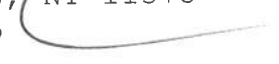
ON THE FIRST CAUSE OF ACTION.....	\$200,000.00
ON THE SECOND CAUSE OF ACTION.....	\$200,000.00
ON THE THIRD CAUSE OF ACTION.....	\$200,000.00
ON THE FOURTH CAUSE OF ACTION.....	\$200,000.00
ON THE FIFTH CAUSE OF ACTION.....	\$200,000.00
ON THE SIXTH CAUSE OF ACTION.....	\$200,000.00

Dated: Forest Hills, NY
August 18, 2015

Yours, etc.



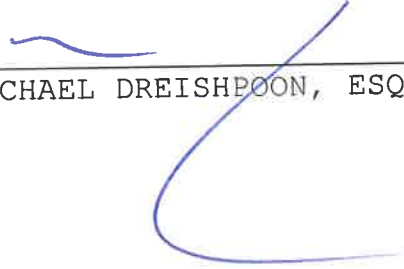
MICHAEL DREISHPOON, ESQ.
Attorney for Plaintiff
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Forest Hills, NY 11375
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CERTIFICATION

Pursuant to 29 CFR 220.32, the undersigned, an attorney admitted to practice in the courts of the Eastern District of New York, certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous, are well grounded in fact and are warranted by existing law.

Dated: Forest Hills, NY
August 18, 2015



MICHAEL DREISHPOON, ESQ.